

CASE SUMMARY

State v. Anmol

Ct. Case No. 189/2020 | CNR DLST01-002109-2020 | Special Court (Electricity), South District, Saket Courts, New Delhi

COURT	Special Court (Electricity), South District, Saket Courts, New Delhi
JUDGE	Sh. Vivek Kumar Gulia, Addl. Sessions Judge
DATE OF JUDGMENT	date of judgment (date of inspection / offence: date of inspection)
PARTIES	State (BSES Rajdhani Power Ltd.) v. Anmol (alleged user/owner) — the registered consumer (Narender Singh) having died
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Sections 101, 106 & 65B, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.
RESULT	Acquitted — complaint dismissed. Meter tampering was confirmed by the laboratory, but the accused was not shown to be the user/owner — the grandfather named did not match, and suspicion cannot replace proof. The accused stands acquitted of the charge under Section 135 read with Sections 150 and 313 of the Electricity Act, 2003.

CHARGE BEFORE THE COURT

Whether the accused Anmol was the user/owner who tampered with the meter and abstracted electricity, so as to attract Section 135 (with Sections 150/313) of the Electricity Act, 2003; and whether, tampering being established, the prosecution proved the accused's identity as the person answerable.

FACTS

BSES Rajdhani alleged meter tampering and direct theft (assessed at about Rs. 11.97 lakh), and the laboratory test confirmed tampering. The difficulty was identity. The user present, Mukesh Kumar, disclosed a grandson's name, but the accused's grandfather was a different person (Late Gurcharan Singh Bindra, not Narender Singh); no ownership documents were shown during the inspection tying the accused to the premises; and nothing else established that the accused was the user/owner answerable for the tampering.

On a complaint under Section 135 (with Sections 150/313), the accused pleaded not guilty; the registered consumer, Narender Singh, had died. Under Section 313 Cr.P.C. the accused denied the allegations. The Court held that strong suspicion of tampering could not, without proof of the accused's identity as the user/owner, sustain a conviction.

REASONING OF THE COURT

HEADNOTE

Even where the laboratory confirms meter tampering, the conviction fails if the prosecution does not prove that the accused was the user/owner of the premises; a mismatch in the family particulars (the grandfather named being a

different person) and the absence of any ownership document at the inspection leave identity unproved — and suspicion, however strong, cannot replace proof.

The presumption arises only after the prosecution proves the foundational facts. The Court proceeded from first principles: the third proviso to Section 135(1) is a reverse-onus clause that operates only once the prosecution has proved, beyond reasonable doubt, both an unauthorised abstraction of electricity and the identity of the accused as its author or the consumer of the premises. Until that foundation is laid the ordinary burden rests on the prosecution, and where two views are reasonably possible the one favouring the accused must be preferred.

Tampering was proved, but not by whom. The laboratory confirmed that the meter had been tampered with; what the prosecution did not prove was that the accused was the user/owner answerable for it — the offence needs both the act and its author, and only the act was established.

The identity particulars did not match. The user present disclosed a grandson's name, but the accused's grandfather was Late Gurcharan Singh Bindra, not the registered consumer Narender Singh; the family particulars relied on to connect the accused to the premises did not fit.

No ownership document and mere suspicion. No ownership document was shown at the inspection tying the accused to the premises; the Court held that suspicion of tampering, however grave, cannot without proof of identity sustain a conviction.

The cumulative doubt entitled the accused to acquittal. With confirmed tampering but no proof that the accused was the user/owner, a mismatch in the family particulars and no ownership document, the foundational facts were not established to the standard the law requires. The statutory presumption never arose, the benefit of the doubt went to the accused, and the charge under Section 135 read with Sections 150 and 313 of the Electricity Act, 2003 was not brought home.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1) — Theft of Electricity: the Foundational Facts

The Court read Section 135(1) as requiring the prosecution first to prove, beyond reasonable doubt, the foundational facts — an unauthorised or artificial abstraction of electricity *and* the identity of the accused as its author or as the consumer/user of the inspected premises. Only upon proof of those facts does the offence, or the abetment of it, arise; a bare allegation, or mere presence at or near the spot, is not enough. As the Act does not define “dishonestly,” Section 24 IPC is imported, but dishonest intention presupposes an abstraction first fixed on the accused.

Third Proviso to Section 135(1) — When the Presumption Does Not Arise

The reverse-onus presumption of dishonest use operates only after the prosecution has established the artificial means of abstraction and connected it to the accused. Where that foundation fails — the inspection is self-contradictory, the user's identity is not fixed, material witnesses are withheld, the electronic record is not duly certified under Section 65B, or the officer's authority to complain is not proved — the presumption never arises. The ordinary rule then governs: the prosecution must prove guilt beyond reasonable doubt, and where two views are reasonably possible the one favouring the accused is adopted.

HELD

The prosecution having failed to prove the foundational facts — confirmed tampering but no proof that the accused was the user/owner, a mismatch in the family particulars and no ownership document — the charge under Section 135 read with Sections 150 and 313 of the Electricity Act, 2003 was not established beyond reasonable doubt. **The accused is accordingly acquitted, and the complaint is dismissed.**

SIGNIFICANCE

Confirmed meter tampering — yet an acquittal, because the tamperer was never identified. Four propositions stand out:

- **Proof of tampering is not proof of the tamperer.** A confirmed lab finding fixes the act, not the person; identity must be independently proved.
- **Mismatched family particulars defeat identity.** Where the grandfather named does not match the accused, the link to the premises is broken.
- **Suspicion cannot replace proof.** However strong the suspicion of tampering, a conviction needs legal proof of the accused's identity as user/owner.
- **A deceased registered consumer sharpens the identity gap.** With the registered consumer dead, the prosecution had to prove the accused's own status — and could not.

CITATIONS

The decision turned wholly on the evidence; neither side pressed any case authority, and the Court decided the matter on the record before it.

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.